

**Before the
FEDERAL MARITIME COMMISSION**

Docket No. 24-16

**Samsung Electronics America, Inc.
v.
COSCO Shipping Lines Co., Ltd.**

**RESPONDENT'S SUBMISSION ON ORDER REQUIRING ADDITIONAL
INFORMATION**

As instructed by the Presiding Officer, in the June 30, 2026 Order (Doc. 130), Respondent COSCO Shipping Lines Co., Ltd. ("COSCO") respectfully makes this submission describing the discovery issues remaining between the parties, and what COSCO needs from Complainant Samsung Electronics America, Inc. ("SEA") in order to go forward with depositions.

A. Remaining Discovery Issues Between the Parties

1. COSCO's Motion to Compel (Doc. 103) answers to Interrogatory Nos. 6, 9, 12-14, 17, 19-20, 25 of COSCO's First Set of Interrogatories and Request No. 11 of COSCO's First Request for Production. All matters remain outstanding.
2. SEA's request to claw back (Doc. 125), and COSCO's opposition to the claw back (Doc. 127) of 219 documents produced by SEA to COSCO. This matter remains outstanding. In addition, SEA has since demanded the claw back in whole or part of eight substantially similar additional documents, which COSCO opposes.¹

¹ Due to SEA's previous claw back requests, out of an abundance of caution, on June 30, 2026, COSCO directed SEA's attention to six documents SEA had produced that SEA had not sought

3. SEA's Supplemental Motion to Compel (Doc. 123). COSCO proposed that SEA withdraw its motion in return for COSCO's voluntary production of documents from custodians Zhao RuiBo and Shan Yin, whose documents are located in China. SEA has not accepted COSCO's proposal and has not made a counterproposal. Nevertheless, COSCO intends to voluntarily produce responsive, non-privileged documents from custodians Zhao RuiBo and Shan Yin. COSCO previously produced complete documents from three other custodians (Tang Wei, Liu Gang, and Liu Shuang) whose documents were located in China. *See* Joint Status Report (Apr. 16, 2026) (Doc.118).

4. COSCO's request to SEA for documents from the custodial files of three individuals who were intimately involved in the matters at issue (Soon Jong Hong, Changhu Yu, and JK Bok). SEA has stated that it would respond "in due course" but has not done so yet.

5. SEA's First Motion to Compel (Doc. 102). As noted in paragraph 3, *supra*, with respect to the production of documents from China, COSCO has voluntarily produced, without redaction, documents of three custodians in China, and COSCO will voluntarily produce the documents from two additional custodians whose documents are located in China.

6. SEA's Second Motion to Compel (Doc. 113). The discovery issues appear to remain outstanding.

B. Discovery Required Before Depositions

COSCO respectfully submits that all the information it seeks is important for depositions. But two items are critical for all, or nearly all, depositions to move forward: 1) COSCO's ability to use the documents that SEA produced and seeks to claw back (the "Challenged Documents");

to claw back. After receiving COSCO's notification, SEA requested the claw back of five and added three others. COSCO asked SEA to provide a privilege log and other information, but to date, SEA has not provided that information.

and 2) SEA's answers, as demanded in COSCO's motion to compel, to Interrogatories Nos. 12-14, 17, 19-20 of COSCO's First Set of Interrogatories.

The Challenged Documents concern SEA's audit of detention, demurrage, and other charges on shipments transported by COSCO and other ocean carriers and include admissions that SEA or another Samsung entity was responsible for charges for which it seeks reparations. COSCO needs the documents to explore, among other things, SEA's admissions, SEA's analysis of causes of delays, and SEA's mishandling of its supply chain.

The interrogatories similarly go to the heart of SEA's claims, including the cause of each delay for which SEA alleges COSCO is responsible and the principal or material facts upon which SEA relies. COSCO needs the answers to depose SEA personnel so that COSCO may obtain the factual record necessary for its defense.

Dated: July 10, 2026

Respectfully submitted,

/s/Rebecca A. Fenneman

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CERTIFICATE OF SERVICE

I hereby certify that on this 10th day of July, 2026, a true and correct copy of the foregoing Submission was served by electronic mail on all counsel of record in accordance with 46 C.F.R. Part 502 and the Commission's Order of May 12, 2020 as follows:

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